

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JUAN ANTONIO CORTEZ,

Petitioner

VS.

ERIKA I CORTEZ,

Respondent

) Case Number: FDI-10-773402

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER CHANGE OF CHILD
CUSTODY, VISITATION (PARENTING TIME), CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Juan Cortez (Father) and Respondent Erika Cortez (Mother) have one minor child, Emeric (DOB: 10/29/2009, age 16). Father is represented by attorney Donald Bloom. Mother is self-represented.
- 2) On 9/28/2010, in related Case No. FDV-10-808106, Mother filed a Request for Domestic Violence Restraining Order against Father. Father stipulated to a no-contact order and the Temporary Restraining Order expired without further issuance of a Domestic Violence Restraining Order.
- 3) On 7/13/2011, a Judgment Regarding Parental Obligations was filed in related Case No. FCS-10-346145. This Judgment requires Father to pay Mother \$481 per month in child support effective 10/1/2011. This child support order has not been modified to date and remains in effect.
- 4) On 1/23/2014, Mother filed a second Request for Domestic Violence Restraining Order against Father in related Case No. FCS-10-346145. On 2/26/2014, a Domestic Violence Restraining

Order was entered for Mother's protection against Father. The restraining order expired on 2/26/2015.

- 5) On 7/26/2016, a Judgment of Dissolution was entered which incorporates the Child Custody and Visitation Stipulation and Order (filed on 6/24/2014) which grants Mother sole legal custody of Emeric and the parties joint physical custody, with Father having visitation every other weekend from Friday school pick up until Sunday at 12 PM along with overnights on Monday and Wednesday. The Judgment also provides that the child support orders previously established in the related FCS case shall remain in effect.
- 6) To date, the orders set forth in the 7/26/2016 Judgment have not been modified.
- 7) Now on for hearing is Father's Request for Order filed 4/30/2026 seeking to modify the current custody, visitation, and child support orders. Father asks that the parties share joint legal custody and that he be granted sole physical custody, with Mother having visitation on alternate weekends from Friday afternoon to Sunday afternoon, half of holidays, and three weeks of summer vacation. Father also requests guideline child support.
- 8) On 4/23/2026, Father filed an Income and Expense Declaration. Father states that he is a Mechanic and he reports earning \$4,000 per month. Father stated "unknown" for Mother's estimated gross monthly income.
- 9) The parties participated in mediation on 7/30/2026 and were unable to reach an agreement.
- 10) On 8/4/2026, Mother filed a Responsive Declaration asking the Court to deny Father's requests in their entirety and to maintain the current custody, visitation, and child support orders.
- 11) Mother did not file an Income and Expense Declaration.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Based on a review of the parties' submissions, the Court finds it is in Emeric's best interest to maintain the current custody and parenting time order.

1 3) Father requested to modify child support as part of his request to modify the parenting time order.

2 Because the Court is not modifying the parenting time order, and because Father has not
3 identified any material change in circumstances warranting a modification of child support,
4 Father's request to modify the current child support order is denied.

5 4) The Court will prepare the Findings and Order After Hearing.
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